

DATED THIS

DAY OF

02 JAN 2018

2018

BETWEEN

PERBADANAN PRIMA MALAYSIA

.....VENDOR

AND

ROSLINA BINTI RASDI
(NRIC NO: 910131-02-5922)

.....PURCHASER

AND

DIBUK DEVELOPMENT & REALTY SDN BHD
(COMPANY NO: 786338-W)

....PROPRIETOR

SALE AND PURCHASE AGREEMENT

PT NO: 2960
PRIMA@PADANG SIDING

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(File Ref: YHH/S&P/PRIMA/PT 2960/40/2017)

SALE AND PURCHASE AGREEMENT

AN AGREEMENT made on the day and year as stated in Section 1 of First Schedule.

BETWEEN

PERBADANAN PRIMA MALAYSIA, (hereinafter referred to as "**the Vendor**"), a statutory body incorporated under the **Perumahan Rakyat 1Malaysia Act 2012** (hereinafter referred to as "**the PRIMA Act**") Licence No.: 14169-11/07-2018/0529 (L) and having its business address at 7th Floor, Block F, No. 2, Jalan PJU 1A/7A, Oasis Square, Ara Damansara, 47301 Petaling Jaya, Selangor Darul Ehsan of the ~~*one~~/first part;

AND

THE PARTY whose name, particulars and address are as stated in Section 2 of First Schedule (hereinafter referred to as "**the Purchaser**") of the ~~*other~~/second part.

*AND

THE PARTY whose name, particulars and address are as stated in Section 3 of First Schedule (hereinafter referred to as "**the Proprietor**") of the third part.

Preamble

WHEREAS the ~~*Proprietor/Vender~~ is the ~~*registered and beneficial owner/*beneficial owner~~ of all that ~~*freehold land/leasehold land ofyears expiring onheld under GRN No. 6174~~ ~~*Lot No./L.O. No. 21136~~ [previously known as *HS(D) No: 9666, PT No: 2960*] in the ~~*Town/Village/Mukim of Padang Siding District of Perlis State of Perlis~~ in an area measuring approximately 123 hectares/square metres (hereinafter referred to as "**the said Land**");

~~Pursuant to a master en-bloc purchase agreement dated [*] made between the Proprietor of the first part and the Vendor of the second part (which shall include any amendments, variations, modifications and/or supplemental made thereto from time to time), the Proprietor has agreed to sell and the Vendor has agreed to purchase the said Land upon the terms and conditions stated therein.~~

Pursuant to the said master en-bloc purchase agreement, the Proprietor has executed and delivered to the Vendor a deed of power of attorney dated [*] to enable the Vendor to deal with and to develop the said Land or any part thereof as part of the **PRIMA Development** (as defined below) including to sell, transfer and/or charge the said Land or any part thereof upon the terms and conditions stated therein;

AND WHEREAS the said Land is charged to [**] with its registered office at [**] as security for the loan granted to the Vendor;

AND WHEREAS the Vendor has, at its own cost and expense, obtained the approval of the Appropriate Authority (as defined in **Clause 36** below) for the subdivision of the said Land into building lots in accordance with the approved Layout Plan a copy of which is annexed as the **Second Schedule** (hereinafter referred to as "**the Layout Plan**") and separate documents of title have *since been/not yet been issued by the Appropriate Authority;

AND WHEREAS the Vendor has, at its own cost and expense, obtained the approval of the building plans (hereinafter referred to as "**the Building Plan**") from the Appropriate Authority, a copy of which is annexed as the **Third Schedule**;

AND WHEREAS the Vendor is developing the said Land as a housing development known as **PRIMA @ PADANG SIDING** *Phase - ("hereinafter referred to as "**the PRIMA Development**") (Advertisement and Sale Permit No.:14169-11/7-2018/0529 (P).);

AND WHEREAS the Purchaser has applied to the Vendor to purchase a PRIMA Home under the PRIMA Act and the Vendor has approved the Purchaser's application and has allocated all that piece of land with vacant possession as described in **Section 4 of First Schedule** hereto and which is more particularly delineated and shaded **RED** in the Layout Plan measuring approximately in area as stated in **Section 5 of First Schedule** hereto (hereinafter referred to as "**the said Lot**") **TOGETHER** with a **SINGLE STOREY TERRACE HOUSE** to be erected thereon (hereinafter referred to as "**the said Building**") described in the Vendor's plan as **Type A1 (Intermediate Unit)** specified in the **Third Schedule** (the said Lot and the said Building are hereinafter collectively referred to as "**the said Property**"), to be purchased by the Purchaser subject to the terms and conditions hereinafter contained;

NOW IT IS HEREBY AGREED as follows:

1. Property free from agricultural, industrial and building restrictions

The *Proprietor and the Vendor hereby agrees to sell and the Purchaser agrees to purchase the said Property free from any agricultural or industrial conditions expressed or implied and all encumbrances other than those imposed by the provisions hereto or already subsisting at the date hereof (if any) and any conditions of title and restrictions in interest expressed or implied affecting the title of the said Property and any restrictions applicable to the PRIMA Development as provided in the PRIMA Act.

2. Property free from encumbrances before the Purchaser takes vacant possession of the said Property

- (1) The *Proprietor and the Vendor hereby undertakes that the said Property shall be free from encumbrances immediately prior to the Purchaser taking vacant possession of the said Property.
- (2) The Purchaser hereby consent to the *Proprietor and the Vendor encumbering the said Land for the purpose of securing credit facilities from any bank and/or financial institution in relation to the construction of the PRIMA Development.

- (3) In the event the said Land shall be encumbered to any bank and/or financial institution by the *Proprietor/Vendor, the *Proprietor/Vendor shall as soon as practicable deliver or cause to be delivered to the Purchaser or the Financier (as defined in **Clause 5(1)** below) in the event the Loan (as defined in **Clause 5(1)** below) is obtained by the Purchaser, as the case may be, a copy of the redemption statement and undertaking letter issued by such bank and/or financial institution in respect of the said Lot and shall authorise the Purchaser to pay such portion of the purchase price or the Financier to release such portion of the Loan, as the case may be, equivalent to the amount of the redemption sum payable in respect of the said Lot directly to such bank and/or financial institution and thereafter the balance purchase price or the balance Loan to the Vendor provided all such payments and releases are made progressively at the time and in the manner prescribed in the **Fourth Schedule**.

3. Purchase price

The purchase price of the said Property is stated in **Section 6 of the First Schedule** and shall be payable in the manner hereinafter provided.

4. Schedule of payments

- (1) The purchase price shall be paid by the Purchaser to the Vendor by instalments and at the time and in the manner as prescribed in the **Fourth Schedule**. The Vendor is not bound to commence or complete the works in the order referred to in **Fourth Schedule** and the Purchaser shall pay the instalments according to the stage of works completed by the Vendor provided that any damage to the completed works by subsequent stage of works shall be repaired and made good by the Vendor at its own cost and expense before the Purchaser takes vacant possession of the said Property.
- (2) Every notice referred to in the **Fourth Schedule** requesting for payment shall be supported by a certificate signed by the relevant architect or engineer in charge of the PRIMA Development and every such certificate so signed shall be proof of the fact that the works therein referred to have been completed.

5. Loan

- (1) As at the date of this Agreement, the Purchaser has successfully obtained a loan from the bank, finance company, building society or a financial institution (hereinafter referred to as "**the Financier**") to finance the payment of the purchase price of the said Property (hereinafter referred to as "**the Loan**") and the Purchaser shall, within a reasonable time after the execution of this Agreement, execute all necessary forms and documents and pay all fees, legal costs and stamp duty in respect thereof.
- (2) The Purchaser shall utilise the whole of the Loan towards the payment of the purchase price of the said Property at the time and in the manner set out in the **Fourth Schedule** provided that notwithstanding any disbursement of the Purchaser's

Loan to the Vendor by the Financier, the Purchaser shall still be primarily liable to pay to the Vendor on the due dates of the relevant instalments and/or any other sums due under this Agreement together with late payment interest (if any) on the outstanding payments as provided for under this Agreement.

- (3) If the Purchaser fails to execute all necessary forms and documents with the Financier and/or pay the necessary fees, legal costs and stamp duty in accordance with **Clause 5(1)** above or defaults in complying with the necessary requirements for the Loan or is disqualified as a result of which the Loan is withdrawn by the Financier, as the case may be, the Purchaser shall then be liable to pay to the Vendor the whole of the purchase price or such part thereof as shall then remain outstanding.
- (4) If required by the Financier and upon receipt by the Vendor of an unconditional undertaking from the Financier to pay the Loan sum in the manner set out in the **Fourth Schedule**, the Vendor shall forward to the Financier an undertaking to refund the Loan sum in the event the Memorandum of Transfer of the said Property cannot be registered in favour of the Purchaser for any reason which is not attributable to the Purchaser.

6. Loans from Federal or State Government or statutory authority

- (1) In the event the Purchaser elects to and has successfully obtained a loan from the Government of Malaysia or any State Government in Malaysia or any statutory authority which provides loan facilities to finance the purchase price of the said Property, (hereinafter referred to as "**the Government Loan**") as at the date of this Agreement, the Purchaser shall, within a reasonable time after the execution of this Agreement, execute all necessary forms and documents and pay all fees, legal costs and stamp duty in respect thereof.
- (2) For avoidance of doubt, where the Purchaser has obtained the Government Loan under **Clause 6(1)**, **Clause 5(2)** shall apply mutatis mutandis and references to the "Loan" shall be read as references to the "Government Loan".

7. Purchaser's right to initiate and maintain action

Provided that the Purchaser has exhausted all remedies available under the PR1MA Act, the Purchaser shall be entitled on his own volition in his own name to initiate, commence, institute and maintain in any court or other tribunal with competent jurisdiction any action, suit or proceeding against the *Proprietor and/or Vendor or any other person in respect of any matter arising out of this Agreement provided the Financier under a deed of absolute assignment is notified in writing either before or within **fourteen (14) days** after the action, suit or proceeding against the *Proprietor and/or Vendor or any such other person has been filed before any court or tribunal.

8. **Time essence of contract**

Time shall be the essence of the contract in relation to all provisions of this Agreement.

9. **Interest on late payments**

- (1)(a) Without prejudice to the Vendor's right under **Clause 10** and **Clause 11** hereof, if any of the instalments set out in the **Fourth Schedule** shall remain unpaid by the Purchaser at the expiration of the respective periods for payment as stipulated in the **Fourth Schedule**, interest on such unpaid instalment shall commence immediately thereafter and be payable by the Purchaser, and such interest shall be calculated from day to day at the rate of **ten per centum (10%) per annum** until the date of actual payment.
- (b) In addition to and not in derogation to **Clause 9(1)(a)** above, if any other payments which are due and payable by the Purchaser to the Vendor under this Agreement, including but not limited to charges for maintenance of services and outgoings remains unpaid by the Purchaser at the expiration of the period(s) stipulated under the respective clauses herein, the interest on such unpaid amount or any part thereof shall commence immediately thereafter and be payable by the Purchaser and such interest shall be calculated from day to day at the rate of **ten per centum (10%) per annum** until the date of actual payment. Notwithstanding the above, the Vendor shall be entitled to bring an action against the Purchaser to recover any unpaid amount including the cost of recovery together with interest thereon and for the legal fees incurred by the Vendor incidental to the collection of the aforesaid charges.
- (2) The Vendor shall not be entitled to charge interest on late payment in respect of any instalment if the delay in payment of such instalment is due to any one or more of the following:
- (a) the relevant progressive claim notice referred to in the **Fourth Schedule** furnished by the Vendor to the Purchaser and/or the Financier is not complete or is not in compliance with the requirement of **Clause 4(2)**;
- (b) in the event the said Land is encumbered to any bank and/or financial institution by the Vendor, such bank and/or financial institution shall delay or fail to issue and deliver the redemption statement and undertaking letter in respect of the said Lot to the Purchaser or the Financier;
- (c) in the event the said Land is encumbered to any bank and/or financial institution by the Vendor, the Financier shall refuse to release the relevant portion of the Loan equivalent to the progressive payment due on the ground that such progressive payment is insufficient to settle the full redemption sum payable in respect of the said Lot; or
- (d) in the event the separate document of title to the said Lot has been issued on the date of this Agreement and the Purchaser has obtained a Loan from the

Financier, the Vendor shall delay or fail to execute and deliver a valid and registrable Memorandum of Transfer of the said Property to the Purchaser.

10. Default by Purchaser and determination of Agreement

- (1) If the Purchaser prior to full payment of the purchase price—
- (a) subject to **Clause 10(3)**, fails to pay any instalment payable under **Clause 4(1)** in accordance with the **Fourth Schedule** or any part thereof and any interest payable under **Clause 9(1)** for any period in excess of **twenty-eight (28) days** after the due date of the instalment or interest;
 - (b) subject to **Clause 10(3)**, fails to pay any sum or sums payable under this Agreement for any period in excess of **twenty-eight (28) days** after the due date of such sum;
 - (c) commits any breach of or fails to perform or observe any material terms or conditions or covenants herein this Agreement;
 - (d) commits an act of bankruptcy or enters into any composition or arrangement with his creditors, whether voluntary or otherwise;
 - (e) commits a serious breach or repeatedly commits a serious breach of any regulations or rules or by-laws relating to the said Property;
 - (f) fails to pay any money due to the Vendor under this Agreement, including any fines or penalties imposed pursuant to any breach of any regulation or rules;
 - (g) made a misrepresentation of a material fact, whether innocently or otherwise, relating to the purchase of the said Property;
 - (h) made a misleading or false statement in the Purchaser's application to the Vendor resulting in the allocation of the said Property by the Vendor to the Purchaser; or
 - (i) at any time, ceases to be a citizen of Malaysia,

the Vendor may, subject to **Clause 10(2)**, annul the sale of the said Property and forthwith terminate this Agreement and in such an event—

- (i) the Vendor shall be entitled to deal with or otherwise dispose of the said Property in such manner as the Vendor shall see fit as if this Agreement had not been entered into;
- (ii) the instalments previously paid by the Purchaser to the Vendor, excluding any interest paid, shall be dealt with and disposed of as follows:

- (a) *firstly*, all interest calculated in accordance with **Clause 9** hereof owing and unpaid shall be paid to the Vendor;
 - (b) *secondly*, a sum equal to **ten per centum (10%)** of the purchase price thereof shall be forfeited to the Vendor; and
 - (c) *lastly*, the residue thereof shall be refunded to the Purchaser;
 - (iii) neither party hereto shall have any further claim against the other for costs, damages, compensation or otherwise under this Agreement; and
 - (iv) each party hereto shall pay its own costs in the matter.
- (2) Upon the occurrence of any of the events set out in **Clauses 10(1)(a), (b), (c), (d), (e), (f), (g), (h) or (i)**, the Vendor shall give the Purchaser or his solicitors not less than fourteen (14) days notice in writing by A.R. Registered post to treat this Agreement as having been repudiated by the Purchaser and unless in the meanwhile such default and/or breach alleged under **Clauses 10(1)(a), (b), (c), (d), (e) or (f)** is rectified or such unpaid instalments and interest are paid or **Clause 10(3)** shall apply, this Agreement shall, at the expiration of the said notice at the option of the Vendor be deemed to be terminated. For avoidance of doubt, the Purchaser's default as stipulated in **Clause 10(1)(g), (h) and (i)** are incapable of being remedied whereupon the occurrence of such default shall render this Agreement as having been terminated.
- (3) If the Purchaser shall have before the expiry of the said **fourteen (14) days** notice obtained approval of the Loan and paid the difference between the purchase price and the Loan and delivered to the Vendor the undertaking letter from the Financier to release the Loan to the Vendor, the Vendor then shall not annul the sale of the said Property and terminate this Agreement unless the Financier shall default in its undertaking to release the Loan to the Vendor or fail to make the first disbursement of the Loan to the Vendor within **thirty (30) days** from the expiry of the said **fourteen (14) days** notice.

11. Right to repurchase the said Property

- (1) Notwithstanding full payment of the purchase price, the Vendor shall have the right to repurchase the said Property from the Purchaser if the Purchaser:-
- (a) commits a serious breach or repeatedly commits a serious breach of any regulations or rules relating to the said Property;
 - (b) fails to pay any money due to the Vendor, including any fines or penalties imposed pursuant to any breach of any regulation or rules;
 - (c) made a misrepresentation of a material fact, whether innocently or otherwise, relating to the purchase of the said Property;

- (d) made a misleading or false statement in the Purchaser's application to the Vendor resulting in the allocation of the said Property by the Vendor to the Purchaser; or
 - (e) at any time, ceases to be a citizen of Malaysia.
- (2) The Vendor shall exercise its right under **Clause 11(1)(a)** if the Purchaser fails to remedy the breach within the specified time in the Vendor's written notice to the Purchaser requiring the Purchaser to rectify the breach within a specified time.
 - (3) The Vendor shall exercise its right under **Clause 11(1)(b)** if the Purchaser fails to pay the money due and payable to the Vendor within the specified time in the Vendor's written notice of demand to the Purchaser requiring the Purchaser to pay the money due and payable to the Vendor within a specified time.
 - (4) The exercise of such right stipulated in this **Clause 11** by the Vendor shall be in accordance with the PR1MA Act at all times.

12. Separate document of title/transfer of title

- (1) Upon the execution of this Agreement the *Proprietor/Vendor shall, at its own cost and expense and as expeditiously as possible, obtain the issue of a separate document of title to the said Lot.
- (2) Upon the issue of the separate document of title to the said Lot and subject to the payment of the full purchase price and all other payments due under this Agreement by the Purchaser to the Vendor in accordance with **Clause 4(1)** and the observance of all the terms and conditions herein provided, the Vendor shall, as soon as practicable, execute or procure the execution of a valid and registrable Memorandum of Transfer of the said Property in favour of the Purchaser and the Vendor shall forward or procure the same to be forwarded together with the separate document of title to the Purchaser.
- (3) The Purchaser shall bear all costs, expenses, stamp duties and fees payable for the transfer of the said Property to the Purchaser.

13. Position and area of the Lot

- (1) The position of the said Lot in relation to the other lots shown in the Layout Plan in the **Second Schedule** and the measurements, boundaries and/or area of the said Lot as given in this Agreement are believed but not guaranteed to be correct and if the measurements, boundaries and/or area of the said Lot shown in the Layout Plan shall be different from its measurements, boundaries and/or area as shown in the final document of title when issued, the purchase price of the said Property calculated at the rate specified in **Section 7 of First Schedule** shall be adjusted accordingly.



- (2) The Vendor may only claim from the Purchaser any payment resulting from the adjustment up to a maximum which is equivalent to the value of **two per centum (2%)** of the total area of the said Lot as shown in the final document of title.
- (3) Any payment resulting from the adjustment and required to be paid by the Vendor or the Purchaser, as the case may be, shall be so paid within **fourteen (14) days** of the issue of the final document of title.
- (4) Where the Layout Plan of the PRIMA Development, including the said Lot, has been approved by the Appropriate Authority, no alteration to the Layout Plan shall be made or carried out except as may be required or approved by the Appropriate Authority. Such alteration shall not annul the Agreement or be the subject of any claim for damages or compensation by or against any party to the Agreement except where the alteration to the Layout Plan results in a change of the land area or the built-up area.

14. Materials and workmanship to conform to description

The said Building shall be constructed in a good and workmanlike manner in accordance with the description set out in the **Fifth Schedule** and in accordance with the plans approved by the Appropriate Authority as in the **Third Schedule**, which descriptions and plans have been accepted and approved by the Purchaser, as the Purchaser hereby acknowledges. No changes thereto or deviations therefrom shall be made without the consent in writing of the Purchaser except such as may be required by the Appropriate Authority. The Purchaser shall not be liable for the cost of such changes or deviations and in the event that the changes or deviations involve the substitution or use of cheaper materials or the omission of works originally agreed to be carried out by the Vendor in relation only to the said Building, the Purchaser shall be entitled to a corresponding reduction in the purchase price herein or to damages, as the case may be.

15. Restriction against variation by Purchaser

- (1) The Purchaser shall not carry out or caused to be carried out any variations to the said Building and description therein or any alteration or addition to the said Building or install or caused to be installed any fixtures or fittings therein which would involve the amendment of the approved Building Plan or the submission of further plans without the prior written consent of the Vendor until the relevant certificate of completion and compliance has been issued.
- (2) Where the Vendor agrees to carry out such alterations or additional works for the Purchaser, the Vendor shall annex to this Agreement an inventory list of such permissible alterations or additional items with a prefixed schedule of rates or charges in respect thereof and the Purchaser shall pay for the cost of such alterations or additional works within **twenty-one (21) working days** of the Vendor's request in writing for such payment.

16. Infrastructure and maintenance

- (1) The Vendor shall, at its own cost and expenses, construct or cause to be constructed the infrastructure, including the roads, driveways, drains, culverts, water mains, electricity cable and sewerage plants serving the PR1MA Development, in accordance with the requirements and standards of the Appropriate Authority. The Vendor shall also bear all costs and expenses charged by the Appropriate Authority in connection with the provision of facilities and amenities including but not limited to street lighting. On completion of the construction of the infrastructure, the Vendor shall do everything possible within its power to have the same taken over and maintained by the Appropriate Authority but until they are so taken over the Purchaser shall, from the date he takes vacant possession or is deemed to have taken vacant possession of the said Property contribute from time to time a fair and justifiable proportion of the cost and expense of their maintenance, upkeep and repair but excluding the cost and expense of maintaining, upkeeping and repairing the areas reserved for roads, open spaces, electricity, substations, sewerage treatment systems and other communal amenities. Apportionment of an appropriate contribution shall be made by a quantity surveyor, architect or engineer appointed by the Vendor or with the approval of the Controller any other competent person appointed by the Vendor.
- (2) Every written notice to the Purchaser requesting for the payment of such contribution from the Vendor shall be supported by a statement issued by the Vendor which shall include a list of description of the infrastructure, the expenditure incurred in the maintenance, upkeep and repair of the infrastructure and the amount of such contribution due to the Vendor in respect thereof.

17. Payment of outgoings

The Purchaser shall be liable for all outgoings including quit rent, rates, taxes, assessment and other charges in respect of the said Property as from the date he takes vacant possession of the said Property or from the date the said Property is transferred to the Purchaser, whichever is earlier and in the event separate document of title to the said Lot has not yet been issued and the said Property is not transferred to the Purchaser on the date he takes vacant possession of the said Property, the Purchaser shall indemnify the Vendor for such outgoings in respect of the said Lot in such proportion as the area of the said Lot bears to the total area of the said Land excluding areas reserved for roads, open spaces, electricity, substations, sewerage treatment systems and other communal amenities and shall continue to pay the same from the date he takes vacant possession of the said Property until the said Property is transferred to him.

18. Maintenance of services

- (1) The Vendor shall provide services, including refuse collection, cleaning of public drains and grass cutting on the road reserves, as from the date the Purchaser takes vacant possession of the said Property until such services are taken over by the Appropriate Authority but until they are so taken over the Purchaser shall, from the

date he takes vacant possession of the said Property, contribute from time to time a fair and justifiable proportion of the cost and expense of such services, such apportionment to be made by a quantity surveyor, architect or engineer appointed by the Vendor or with the approval of the Controller any other competent person appointed by the Vendor.

- (2) The Purchaser shall pay **six (6) months'** advance in respect of such contribution on the date he takes vacant possession of the said Property and any payment thereafter shall be payable monthly in advance. Every written notice to the Purchaser requesting for the payment of such contribution from the Vendor shall be supported by a statement issued by the Vendor which shall include a list and description of the services provided, the expenditure incurred and the amount of such contribution due to the Vendor in respect thereof. Upon such services having been taken over by the Appropriate Authority, the Vendor shall, within **twenty-one (21) days** after the date of the notification issued by the Appropriate Authority of such taking over, refund to the Purchaser the balance of the amount of such contribution paid by the Purchaser after deducting the amount due to the Appropriate Authority.

19. Water, electricity, telephone trunking

- (1) The Vendor shall, at its own cost and expense, lay or cause to be laid all necessary water, electricity and sewerage mains and internal telephone trunking and cabling, to serve the PR1MA Development and at its own costs and expense undertake to apply for the connection of internal water, electricity and sanitary of the said Building to the water, electricity and sewerage mains of the Appropriate Authority.
- (2) The Purchaser shall be liable for and shall pay, within **fourteen (14) days** after the receipt of a notice requesting for payment from the Vendor, the deposits for the installation of water and electricity meters and the Vendor shall bear all other costs, if any.
- (3) Subject to prior written consent of the Vendor, the Purchaser may apply for telephone/telecommunication service including broadband service and internet protocol television service (IPTV), if any, with any telecommunication service provider other than service provider appointed by the Vendor. In connection thereto, the Purchaser shall be liable for and shall pay the deposit and all charges for such service(s) mentioned above.

20. Incorporation of the PR1MA Act

The Purchaser hereby acknowledges that provisions of the PR1MA Act shall apply to the sale and purchase transaction contemplated under this Agreement. The Purchaser further agrees to comply with the PR1MA Act and all rules and regulations prescribed under the PR1MA Act at all times.

21. Compliance with written laws

The Vendor shall, in relation to the said Building to be erected, conform to the provisions and requirements of any written law for the time being in force affecting the PR1MA Development and shall keep the Purchaser indemnified against all fines, penalties or losses incurred by reason of any breach of the provisions of any written laws.

22. New laws affecting PR1MA Development

The Purchaser shall not be liable to indemnify the Vendor in the event of an introduction of new laws or the amendment of existing laws which shall impose on the Vendor additional fees, charges or taxes, the payment of which shall be necessary for continuing and completing the development of the PR1MA Development or any part or parts thereof in accordance with the Layout Plan, Building Plan and description referred to and the due observance and performance by the Vendor of its obligation and liabilities under this Agreement.

23. Time for delivery of vacant possession

- (1) Vacant possession of the said Property shall be delivered to the Purchaser in the manner stipulated in **Clause 24** within **twenty-four (24) calendar months** from the date of this Agreement.
- (2) If the Vendor fails to deliver vacant possession of the said Property in manner stipulated in **Clause 24** within the time stipulated in **Clause 23(1)**, the Vendor shall be liable to pay to the Purchaser liquidated damages calculated from day to day at the rate of **ten per centum (10%)** per annum of the purchase price from the expiry date of the delivery of vacant possession in **Clause 23(1)** until the date the Purchaser takes vacant possession of the said Property. Such liquidated damages shall be paid by the Vendor to the Purchaser immediately upon the date the Purchaser takes vacant possession of the said Property.
- (3) For the avoidance of doubt, any cause of action to claim liquidated damages by the Purchaser under this clause shall accrue on the date the Purchaser takes vacant possession of the said Property.

24. Manner of delivery of vacant possession

- (1) The Vendor shall let the Purchaser into possession of the said Property in the manner stated in **Clause 24(3)** below subject to the following having being fulfilled or complied with:
 - (a) the issuance of a certificate of completion and compliance certifying that the said Building has been duly constructed and completed in conformity with the approved plans and the requirements of the Street, Drainage And Building Act, 1974 and any by-laws made thereunder;

- (b) water and electricity supply are ready for connection to the said Building; and
 - (c) the Purchaser having paid all monies payable under **Clause 4(1)** in accordance with the **Fourth Schedule** and all other monies due under this Agreement and the Purchaser having performed and observed all the terms and covenants on his part under this Agreement.
- (2) The delivery of vacant possession by the Vendor shall be supported by a certificate of completion and compliance certifying that the said Building is safe and fit for occupation and includes the handing over of the keys of the said Building to the Purchaser.
 - (3) Upon the expiry of **fourteen (14) days** from the date of a notice from the Vendor requesting the Purchaser to take possession of the said Property (hereinafter referred to as "**the Vendor's VP Notice**"), whether or not the Purchaser has actually entered into possession or occupation of the said Property, the Purchaser shall be deemed to have taken delivery of vacant possession.

25. Vendor to obtain the certificate of completion and compliance

The Vendor shall procure that all the requirements of the Appropriate Authority which are necessary for the issuance of the certificate of completion and compliance in respect of the said Building will be complied with.

26. Defect liability period

- (1) Any defect, shrinkage or other faults in the said Building which shall become apparent within a period of **twenty-four (24) calendar months** commencing from the date next after the expiry of **fourteen (14) days** of the Vendor's VP Notice (hereinafter referred to as "**the Defect Liability Period**") and which are due to defective workmanship or materials or; the said Building not having been constructed in accordance with the plans and description as specified in the **Third and Fifth Schedule** as approved or amended by the Appropriate Authority, shall be repaired and made good by the Vendor at its own cost and expenses within **thirty (30) days** of the Vendor having received written notice thereof from the Purchaser.
- (2) If the said defect, shrinkage or other faults in the said Building have not been made good by the Vendor within the said period of **thirty (30) days** under **Clause 26(1)**, the Purchaser shall be entitled to carry out the works to repair and make good the said defect, shrinkage or other faults himself and to recover from the Vendor the costs of repairing and making good the same and the Purchaser may deduct such costs from any sum which has been held by the Vendor's solicitors as stakeholder for the Vendor under **item 5** of the **Fourth Schedule** provided that the Purchaser shall, at any time after the expiry of the said period of **thirty (30) days**, notify the Vendor of the cost of repairing and making good the said defects, shrinkage or other faults before the commencement of the works and shall give the Vendor an opportunity to carry out

the works himself within **fourteen (14) days** from the date the Purchaser has notified the Vendor of his intention to carry out the said works and provided further that the Purchaser shall carry out and commence the said works as soon as practicable after the Vendor's failure to carry out the said works within the said period of **fourteen (14) days**. In such an event, the Vendor's solicitors shall release such costs to the Purchaser from the stakeholder sum held by the Vendor's solicitors under item 5 of the **Fourth Schedule** within **fourteen (14) days** after receipt by the Vendor's solicitors of the Purchaser's written demand specifying the amount of such costs.

- (3) Subject to **Clause 26(2)**, where the Purchaser has, before the expiry of **eight (8) months** or **twenty four (24) months** after the date the Purchaser takes vacant possession of the said Property as set out in **item 5(a)** and **item 5(b)** respectively of the **Fourth Schedule**, duly served on the Vendor's solicitors a copy of the written notice from the Purchaser to the Vendor under **Clause 26(1)** to rectify the said defect, shrinkage or other faults in the said Building, the Vendor's solicitors shall not release to the Vendor the relevant sum held by the Vendor's solicitors as stakeholder pursuant to **item 5(a)** and/or **item 5(b)** of the **Fourth Schedule**, as the case may be, until the Vendor's solicitors shall have received a certificate signed by the Vendor's architect certifying that the said defect, shrinkage or other faults in the said Building have been repaired and made good by the Vendor.

27. Rules and Regulations

The Purchaser hereby covenants with the Vendor and jointly and severally with all the other purchasers that the Purchaser shall and notwithstanding anything contained herein to the contrary, perform, observe and comply with all of the terms and provisions of the rules and regulations set out in **Sixth Schedule** hereto (hereinafter referred to as "**the Rules and Regulations**"). For avoidance of doubt, the Rules and Regulations set out in **Sixth Schedule** are not exhaustive and the Purchaser covenants to comply with any other rules and regulations that are applicable to the PR1MA Development as determined by PR1MA from time to time.

28. Public Authorities Protection Act 1948

The Purchaser acknowledges and agrees that the Public Authorities Protection Act, 1948 (Act 198) shall apply to any action, suit, prosecution or proceedings against the Vendor or a member of the Vendor or a committee, and an employee or agent of the Vendor in respect of any act, neglect or default done or committed by the Vendor or the persons stipulated herein in good faith or any omission by the Vendor or the person stipulated herein in good faith in such capacity.

29. Indemnity

- (1) The Purchaser shall be responsible for and keep the Vendor fully indemnified against all damages losses costs expenses actions demands proceedings claims and liabilities made against or suffered or incurred by the Vendor including the costs of defending

any legal suits or proceedings taken against the Vendor (on a solicitor and client basis) arising directly or indirectly out of:

- (a) any act omission or negligence of the Purchaser or his family servants agents or invitees or such other lawful occupiers of the said Property;
 - (b) any breach or non-observance by the Purchaser or his family servants agents or invitees or such other lawful occupiers of the said Property or the Rules and Regulations and/or other covenants, conditions or other provisions of this Agreement; and
 - (c) any breach or non-observance by the Purchaser or his family servants agents or invitees or such other lawful occupiers of the said Property of any enactment, act or ordinance and to any regulations or by-laws for the time being in force affecting the said Property or the said Building.
- (2) The protection against liability and indemnity provided under **Clauses 28 and 29** therein shall be in addition and not in derogation or variation of the protection accorded to the Vendor under the PRIMA Act.

30. Common rights of Purchaser

- (1) Subject to covenants, conditions and any other provisions of this Agreement, the Vendor confirms that the said Lot and all other lots shown in the Layout Plan are sold together with free rights and liberties for the Purchaser, his personal representatives, successors in title, his assigns and his servants, agents, licensees and invitees in common with the Vendor and all other persons having the like rights and liberties to use without or with vehicles of every description at all times and for all purposes whatsoever connected with the use and enjoyment of the said Property to pass and repass along, over and upon all roads serving the PRIMA Development and to make all necessary connections and thereafter to use in a proper manner the drains, pipes, cables and wires laid or constructed by the Vendor under or over such roads.
- (2) The Vendor hereby undertakes that the purchasers of the lots comprised in the PRIMA Development shall enter into similar covenants and hereby further undertakes to ensure that in the event of any transfer of the said Property from the Purchaser to a subsequent purchaser, the latter shall undertake to be bound by the covenants of this clause which shall continue to apply notwithstanding the completion of this Agreement.

31. No Disposal without the Vendor's Prior Consent during Moratorium Period

- (1) Notwithstanding full payment of the purchase price to the Vendor, the Purchaser agrees that the Purchaser shall not under any guise or pretext whatsoever:-
 - (a) sell; dispose of, deal with or part with possession of the said Property or any part thereof; or

- (b) transfer or assign all or any of the rights, duties, obligations or interests of the Purchaser under this Agreement;

during a period commencing from the date of this Agreement until the expiry of **ten (10) years** after the date of issuance of the issue document of title of the said Property duly registered in favour of the Purchaser as proprietor, without the prior written consent of the Vendor (hereinafter referred to as "**the Moratorium Period**").

For avoidance of doubt, in the event the Purchaser intends to dispose the said Property to the third party, the Vendor shall have absolute discretion to decide whether to grant its written consent to the Purchaser or otherwise, after taking into account the eligibility of the third party to purchase the PR1MA home pursuant to the provisions of the PR1MA Act.

- (2) If the Vendor shall decide to consent to any application made by the Purchaser pursuant to **Clause 31(1)**, such consent shall be granted by the Vendor upon the following conditions:-
 - (a) the Purchaser shall procure its transferee or assignee or sub-purchaser of the said Property to comply with all covenants and obligations of the Purchaser stated in this Agreement and/or any rules and regulations as prescribed by the Vendor including but not limited to the Rules and Regulations and delivers to the Vendor a duly executed and stamped irrevocable letter of undertaking by such transferee, assignee, sub-purchaser of the said Property in form and substance acceptable to the Vendor, agreeing to be bound by the covenant herein stated in place of the Purchaser;
 - (b) pending the delivery of such letter of undertaking to the Vendor, the Purchaser shall continue to be bound by all covenants and obligations of the Purchaser stated in this Agreement and/or any rules and regulations as prescribed by the Vendor including but not limited to the Rules and Regulations and remain liable to indemnify the Vendor on demand against any breach by its transferee, assignee, sub-purchaser (and their subsequent successors) of the said covenants and obligations;
 - (c) payment or reimbursement by the Purchaser of all costs, expenses and charges incurred by the Vendor (including any charges payable to the Vendor's consultant or advisors and the Vendor's solicitors fees on a solicitor and client basis) and if required by the Vendor, an administrative fee; and
 - (d) such other terms and conditions as the Vendor may deem fit.

32. Service of documents

- (1) Any notice, request or demand required to be served by either party hereto to the other under this Agreement shall be in writing and shall be deemed to be sufficiently served:-

- (a) if it is sent by the party or his solicitors by registered post addressed to the other party's address hereinbefore mentioned and in such case the notice, request or demand shall be deemed to have been received upon the expiry of a period of **five (5) days** of posting of such registered letter; or
- (b) if it is given by the party or his solicitors by hand to the other party or his solicitors.

(2) Any change of address by either party shall be communicated to the other in writing.

33. Stamp duty and registration fee

The stamp duty and registration fee for this Agreement and the subsequent transfer of the said Property referred to in **Clause 12(2)** shall be borne and paid by the Purchaser but each party shall bear its own solicitor's costs.

34. Assignment

Subject to **Clause 31**, the Purchaser shall not assign all his rights, interest and title in and to the said Property to third parties without the prior written consent of the Vendor.

35. Schedules

The **First, Second, Third, Fourth, Fifth and Sixth Schedules** shall form part of this Agreement and shall be read, taken and construed as an essential part of this Agreement.

36. Interpretation

In this Agreement, where the context so admits –

- (a) “**Appropriate Authority**” means any authority for the time being authorised under any written law in force in Peninsular Malaysia to approve subdivision of land, building plans, the issue of documents of title and to enforce any other laws related thereto and includes any corporations or private agencies licensed by the Appropriate Authority to provide water, electricity, telephone, sewerage services and other related services;
- (b) “**certificate of completion and compliance**” means the certificate of completion and compliance given or granted under the Street, Drainage and Building Act 1974 and any by-laws made under the Act certifying that the housing accommodation has been completed and is save and fit for occupation but does not include partial certificate of completion and compliance;



- (c) **“Controller”** means the Controller of Housing appointed under the Housing Development (*Control and Licensing*) Act 1966;
- (d) **“Purchaser”** includes his heirs, personal representatives, successors in title and assigns and where there are two or more persons included in the expression “the Purchaser” their liabilities under this Agreement shall be joint and several;
- (e) **“ready for connection”** means electrical points and water fittings and fixtures have been installed by the Vendor and tested and commissioned by the Appropriate Authority or its authorised agent and supply is available for tapping into individual building units;
- (f) **“Vendor”** includes its successors in title and assigns; and
- (g) words importing the masculine gender shall be deemed and taken to include the feminine and neuter genders and the singular to include the plural and vice versa.

37. Persons to be bound by Agreement

This Agreement shall be binding upon the successors in title and assigns of the Vendor, the heirs, personal representatives, successors in title and assigns of the Purchaser.

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FIRST SCHEDULE

SECTION	ITEM	PARTICULARS
1.	The date of this Agreement	02 JAN 2018
2.	Name, particulars and address of the Purchaser	ROSLINA BINTI RASDI (NRIC NO.: 910131-02-5922) Of Kampung Betong, Mukim Jeneri, 08320 Sik, Kedah.
3.	*Name, particulars and address of the Proprietor	DIBUK DEVELOPMENT & REALTY SDN BHD (786338-W) Of No. 23 (Atas), Jalan Sena Indah, Taman Sena Indah, 01000 Kangar, Perlis.
4.	Description of the said Property	SINGLE STOREY TERRACE HOUSE
5.	Area of said Property	123 square metres / square feet
6.	Purchase Price of the said Property	Ringgit Malaysia One Hundred And Ninety Five Thousand (RM195,000.00) only.
7.	Rate of Adjustment of Purchase Price of the said Property in accordance with Clause 13	Ringgit Malaysia Forty Two (RM42.00) only per sqft.



SECOND SCHEDULE
(Copy of approved Layout Plan attached)

Approved Layout Plan Reference No.: **MPK.Ps.05P/023/11 KPI JLD.5 (20)**

Name of Appropriate Authority: **MAJLIS PERBANDARAN KANGAR, PERLIS**

THIRD SCHEDULE

(Copy of approved Building Plan attached)

Approved Building Plan Reference No.: **MPK.Ps.05P/023/11 KPI JLD.5 (20)**

Name of Appropriate Authority: **MAJLIS PERBANDARAN KANGAR, PERLIS**

- | | | | |
|-----|-----------------|-------|----------|
| 1. | Floor Plan | | Attached |
| 2. | Section Plan | | Attached |
| 3. | Front Elevation | | Attached |
| 4. | Back Elevation | | Attached |
| *5. | Side Elevation | | Attached |

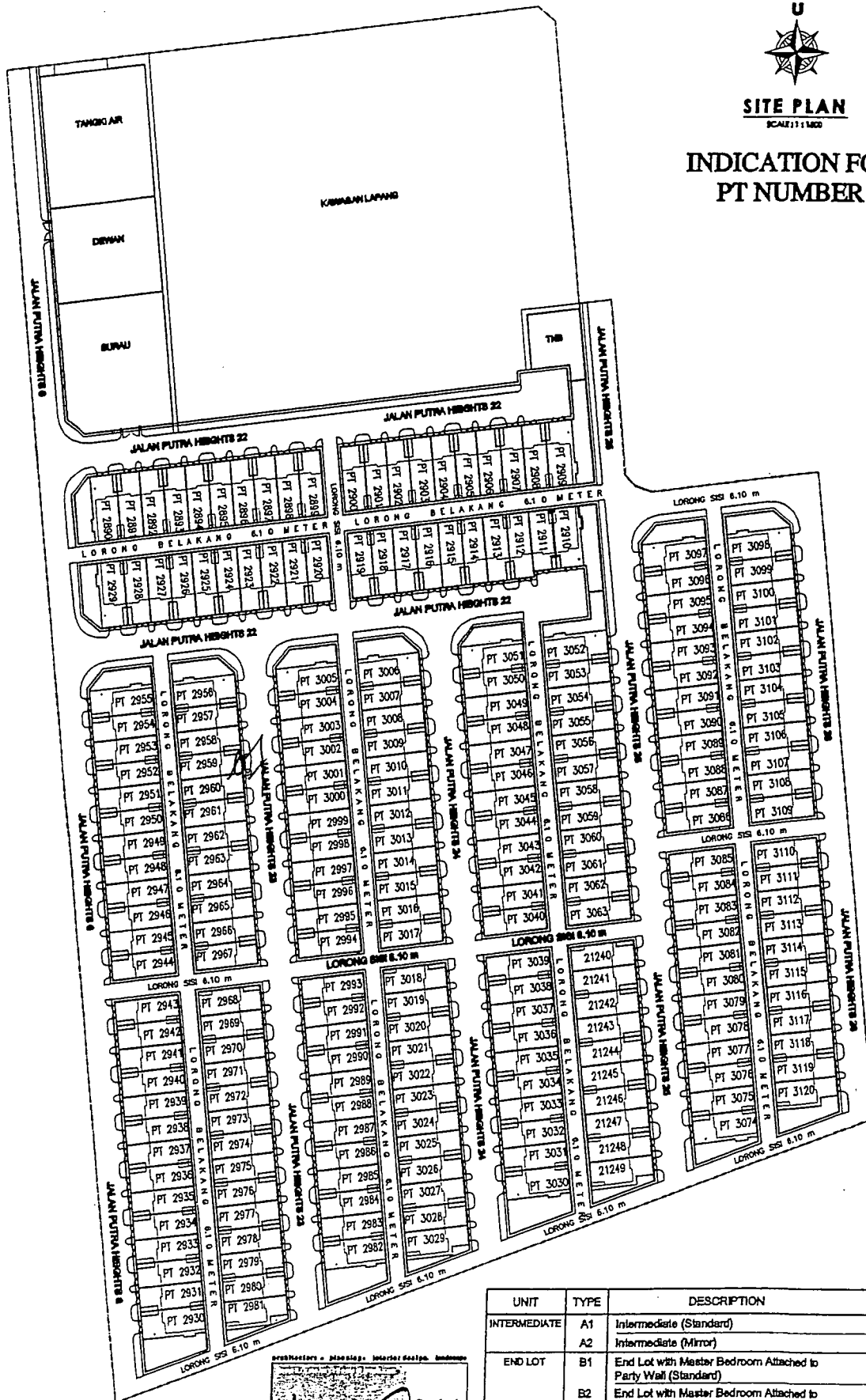




SITE PLAN

SCALE 1:11000

INDICATION FOR PT NUMBER

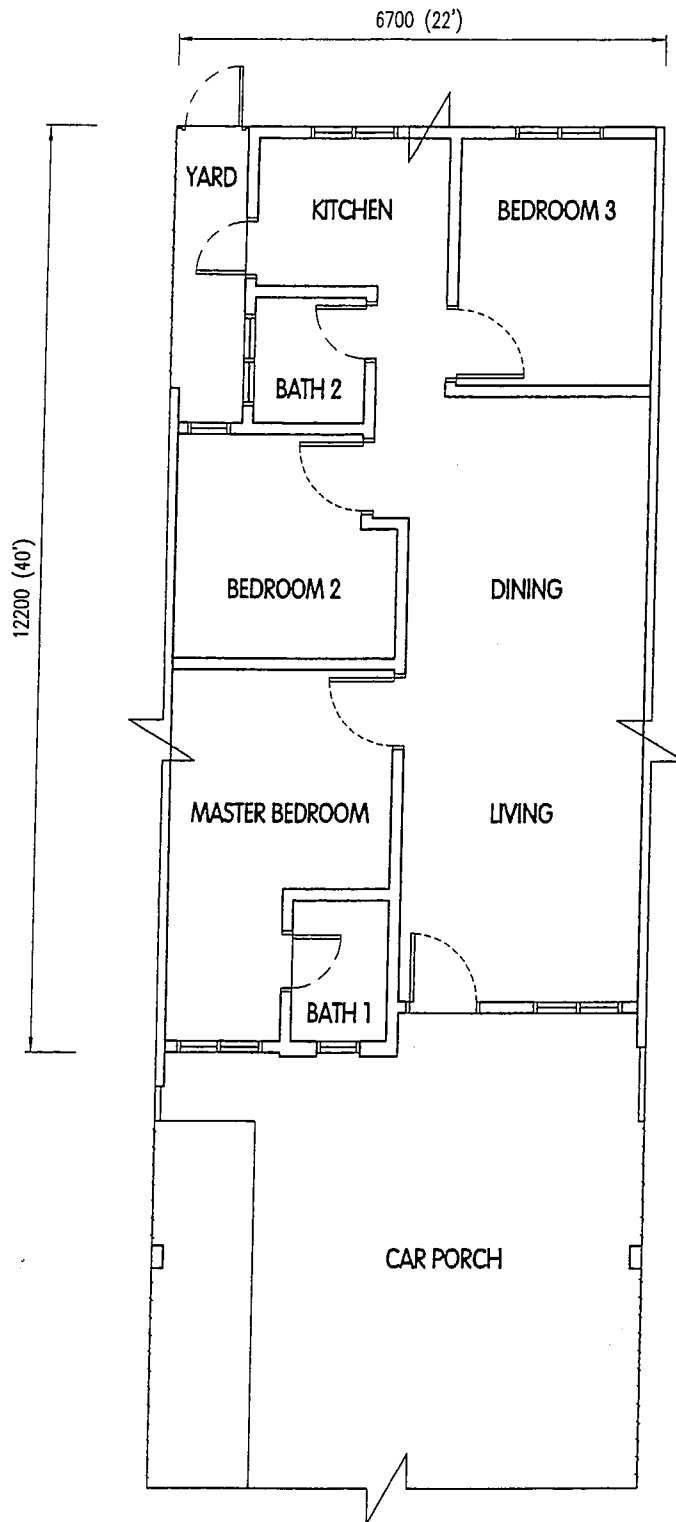


Architects - plans, interior design, landscape

 Ar. Roshdan bin Md Salleh
 ARKITEK PROFESIONAL
 No. Pendaftaran LAM: A/R 43

UNIT	TYPE	DESCRIPTION	NOS
INTERMEDIATE	A1	Intermediate (Standard)	95
	A2	Intermediate (Mirror)	86
END LOT	B1	End Lot with Master Bedroom Attached to Party Wall (Standard)	7
	B2	End Lot with Master Bedroom Attached to Party Wall (Standard)	10
	B3	End Lot with Living Room Attached to Party Wall	3
	B4	End Lot with Terrace and Side Apron	4
	B5	End Lot with Side Apron	4
CORNER LOT	C1	Corner Lot (Standard)	6
	C2	Corner Lot (Mirror)	6

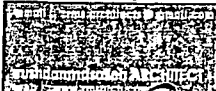
SINGLE STOREY TERRACE HOUSE PRIMA @ PADANG SIDING



TYPE	: A1	PTD NUMBER :									
	: INTERMEDIATE UNIT	2892	2894	2896	2898	2902	2904	2906	2908	2912	2914
DRAWING TITLE	: FLOOR PLAN	2916	2918	2922	2924	2926	2928	2932	2934	2936	2938
		2940	2942	2946	2948	2950	2952	2954	2958	2960	2962
DATE ISSUE		2964	2966	2969	2971	2973	2975	2977	2979	2984	2986
		2988	2990	2992	2996	2998	3000	3002	3004	3008	3010
		3012	3014	3016	3019	3021	3023	3025	3027	3032	3034
		3036	3038	3042	3044	3046	3048	3050	3054	3056	3058
		3060	3062	21241	21243	21245	21247	3076	3078	3080	3082
		3084	3088	3090	3092	3094	3096	3100	3102	3104	3106
		3108	3112	3114	3116	3118					

* ALL DRAWINGS ARE SUBJECTED TO VARIATION, MODIFICATION AND SUBSTITUTION AS RECOMMENDED BY THE ARCHITECT AND/OR DIRECTED BY APPROPRIATE AUTHORITY *

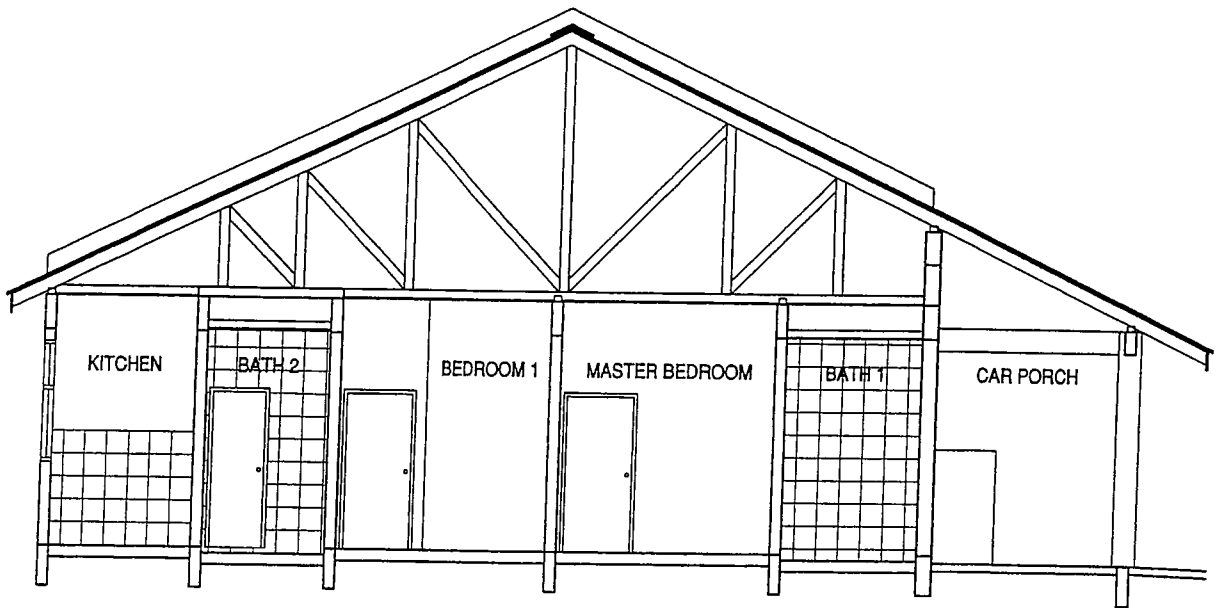
architecture • planning • interior design • landscape



ARKITEK PROFESIONAL

Ar. Rusdhan bin Md Salleh
No Pendaftaran LAM: AR-43

SINGLE STOREY TERRACE HOUSE PRIMA @ PADANG SIDING



SECTION

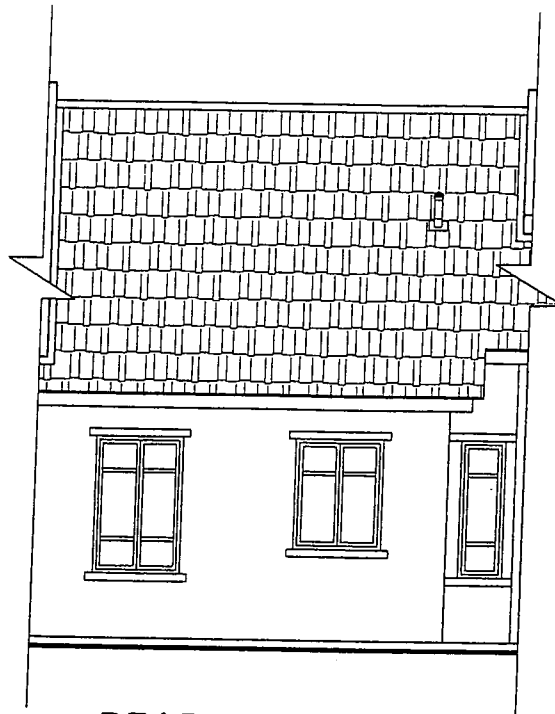
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DRAWING TITLE	: SECTION	2916	2918	2922	2924	2926	2928	2932	2934	2936	2938
		2940	2942	2946	2948	2950	2952	2954	2958	2960	2962
DATE ISSUE		2964	2966	2969	2971	2973	2975	2977	2979	2984	2986
		2988	2990	2992	2996	2998	3000	3002	3004	3008	3010
		3012	3014	3016	3019	3021	3023	3025	3027	3032	3034
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		3060	3062	21241	21243	21245	21247	3076	3078	3080	3082
		3084	3088	3090	3092	3094	3096	3100	3102	3104	3106
		3108	3112	3114	3116	3118					

* ALL DRAWINGS ARE SUBJECTED TO VARIATION, MODIFICATION AND SUBSTITUTION AS RECOMMENDED BY THE ARCHITECT AND/OR DIRECTED BY APPROPRIATE AUTHORITY *

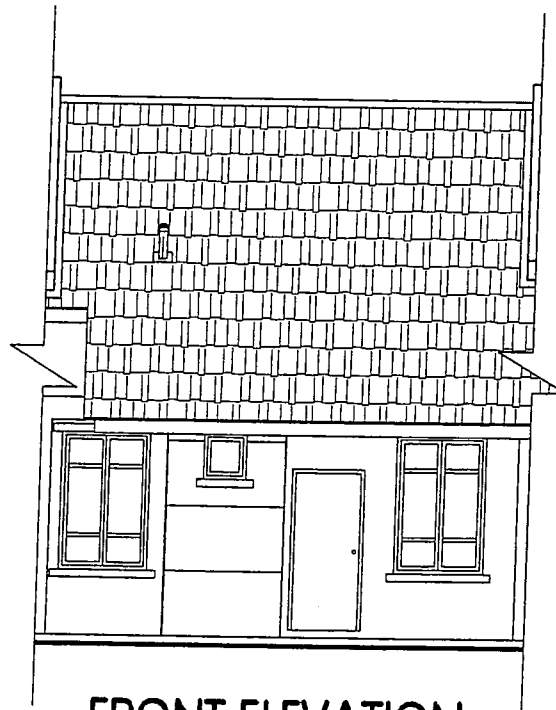
architecture • planning • interior design • landscape

Ar. Rusdhan bin Md Saleh
ARKITEK PROFESIONAL
No Pendaftaran LAM : AR 43

SINGLE STOREY TERRACE HOUSE PRIMA @ PADANG SIDING



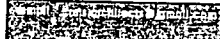
REAR ELEVATION



FRONT ELEVATION

TYPE	: A1	PTD NUMBER:									
	: INTERMEDIATE UNIT	2892	2894	2896	2898	2902	2904	2906	2908	2912	2914
DRAWING TITLE	: FRONT & REAR ELEVATION	2916	2918	2922	2924	2926	2928	2932	2934	2936	2938
		2940	2942	2946	2948	2950	2952	2954	2958	2960	2962
		2964	2966	2969	2971	2973	2975	2977	2979	2984	2986
DATE ISSUE		2988	2990	2992	2996	2998	3000	3002	3004	3008	3010
		3012	3014	3016	3019	3021	3023	3025	3027	3032	3034
* ALL DRAWINGS ARE SUBJECTED TO VARIATION, MODIFICATION AND SUBSTITUTION AS RECOMMENDED BY THE ARCHITECT AND/OR DIRECTED BY APPROPRIATE AUTHORITY*		3036	3038	3042	3044	3046	3048	3050	3054	3056	3058
		3060	3062	21241	21243	21245	21247	3076	3078	3080	3082
		3084	3088	3090	3092	3094	3096	3100	3102	3104	3106
		3108	3112	3114	3116	3118					

architecture • planning • interior design • landscape



Rffas



Ar. Rusdian bin Md Saifiah
ARKITEK PROFESIONAL
No Pendaftaran LAN: A/R 43

architectural • planning • interior design • landscape



Ar. Rusdan bin Md Salleh
ARKITEK PROFESIONAL
No Pendaftaran LAM : AVR 43

FOURTH SCHEDULE

(Clause 4)

SCHEDULE OF PAYMENT OF PURCHASE PRICE

	<i>Instalments Payable</i>	<i>%</i>		<i>Amount</i>
1.	Immediately upon the signing of this Agreement	10	RM	19,500.00
2.	Within twenty-one (21) working days after receipt by the Purchaser of the Vendor's written notice of the completion of –			
	(a) the foundation and footing works of the said Building;	10	RM	19,500.00
	(b) the structure framework of the said Building	15	RM	29,250.00
	(c) the walls of the said Building with door and window frames placed in position	10	RM	19,500.00
	(d) the roofing, electrical wiring, plumbing (without fittings), and internal telephone trunking and cabling to the said Building	10	RM	19,500.00
	(e) the internal and external finishes of the said Building including the wall finishes	10	RM	19,500.00
	(f) the sewerage works serving the said Building	5	RM	9,750.00
	(g) the drains serving the said Building	5	RM	9,750.00
	(h) the roads serving the said Building	5	RM	9,750.00
3.	On the date the Purchaser takes vacant possession of the said Property, with water and electricity supply ready for connection	12.5	RM	24,375.00
4.	On the date the Purchaser takes vacant possession of the said Property as in item 3 as follows:	2.5	RM	4,875.00
	(a) where separate document of title to the said Lot has been issued and the *Proprietor/Vendor has executed and delivered to the Purchaser or the Purchaser's solicitors a valid and registrable Memorandum of Transfer of the said Property in favour of the Purchaser together with the			

original issue document of title to the said Lot,
to be paid direct to the Vendor; or

- (b) where separate document of title to the said Lot has not yet been issued, to be held by the Vendor's solicitors as stakeholder for payment to the Vendor within **twenty one (21)** working days after receipt by the Purchaser or the Purchaser's solicitors of the original issue document of title to the said Lot together with the valid and registrable Memorandum of Transfer of the said Property in favour of the Purchaser executed by the *Proprietor/Vendor.

5. On the date the Purchaser takes vacant possession of the said Property as in **item 3** and to be held by the Vendor's solicitor as stakeholder for payment to the Vendor as follows:-

5 RM 9,750.00

- (a) two point five per centum (2.5%) at the expiry of **eight (8) months** after the date the Purchaser takes vacant possession of the said Property;
- (b) two point five per centum (2.5%) at the expiry of **twenty four (24)** months after the date the Purchaser takes vacant possession of the said Property.

TOTAL

100 RM 195,000.00

FIFTH SCHEDULE

(Clause 14)

BUILDING DESCRIPTION

- (a) Structure:
- (b) Wall:
- (c) Roofing covering:
- (d) Roof framing:
- (e) Ceiling:
- (f) Windows:
- (g) Doors:
- (h) Ironmongery:
- (i) Wall finishes:
- (j) Floor finishes:
- (k) Sanitary and plumbing fitting:
- (l) Electrical installation:
- (m) Internal telephone trunking and cabling;

Note: The Vendor shall at its own cost and expense install or construct all of the items listed above in accordance to the description set out save for the item or items marked with an * which may be deleted if not applicable.



k) Sanitary and Plumbing Fittings	Pedestal WC	:	2
	Wash Hand Basin	:	2
	Pillar Tap	:	2
	Shower Rose	:	2
	Bib Tap	:	2
	Aluminum Kitchen Sink	:	1
	Kitchen Sink Tap	:	1
l) Electrical Installations	Lighting Point	:	12
	Wall Lighting Point	:	N/A
	Fan Point	:	5
	13A SSO	:	9
	15A SO	:	2
	Bell Point	:	N/A
	MATV Point	:	1
	Telephone Point	:	1
m) Internal Telephone Trunking and Cabling	Telephone Data	:	1
	Conceal		
n) *Fencing	Chain Link Fence		
o) *Turfig	N/A		
p) *Gas Piping	N/A		

Note: The vendor shall at its own cost and expense install or construct all of the item listed above in accordance to the description set out safe for the item or items marked with an * which may be deleted if not applicable.

[Handwritten Signature]
[Handwritten Initials]
 ARCHITECT
 SP/R 43
 Iqbal Musalleh

SINGLE STOREY TERRACE HOUSE
PRIMA@ PADANG SIDING

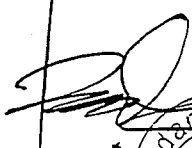
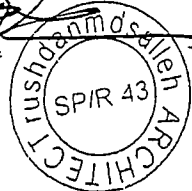
THE FIFTH SCHEDULE
(Schedule of Particulars – Clause 14)

(Type A1 and A2)

This schedule shall be taken, read and construed as an essential part of this agreement

BUILDING DESCRIPTION

a) Structure	Reinforced Concrete
b) Wall	Cement Sand Bricks/Fire Rated Cement Sand Brick
c) Roof Covering	Concrete Roof Tiles
d) Roof Framing	Lightweight Metal Trusses
e) Ceiling	Plaster Ceiling Asbestos Free Cement Sheets
f) Windows	Aluminum Frame Glass Panel Window
g) Doors	Main Entrance : Metal Frame Decorative Timber Panel Door Bedrooms : Metal Frame Plywood Flush Door Bathrooms : Metal Frame PVC Panel Door Kitchen : Metal Door
h) Ironmongery	All Doors : Quality Lockset
i) Wall Finishes	External Walls : Weather Coat Paint Internal Walls : Emulsion Paint Bathrooms : Full Height Ceramic Wall Tiles Kitchen : 1500mm Height Ceramic Wall Tiles Others : 100mm High Ceramic Skirting for internal Plastered Wall
j) Floor Finishes	Living : Ceramic Tiles Dining : Ceramic Tiles Kitchen : Ceramic Tiles Bedrooms : Ceramic Tiles Bathrooms : Non-Slip Ceramic Tiles Car Porch : Cement Render Driveway : Cement Render Yard : Cement Render


SIXTH SCHEDULE

RULES AND REGULATIONS

(referred to in **Clause 27** of this Agreement)

1. **DUTY OF THE PURCHASER**

1.1 The Purchaser is obliged to pay in a timely manner pursuant to the respective clauses of this Agreement the following charges:

- (a) the requisite charges determined by the Vendor and/or a duly qualified person or agent appointed by the Vendor to provide the services referred to in this Agreement (hereinafter referred to as "**the Manager**") in accordance with the terms of this Agreement; and
- (b) all other charges due and payable by the Purchaser to the Vendor under this Agreement,

failing which interest on such unpaid amount or any part thereof shall commence immediately from the date the respective periods for payment becomes due as stipulated in **Clause 9(1)** of this Agreement.

1.2 Notwithstanding the interest chargeable, the Vendor or the Manager shall also:

- (a) be entitled to stop and suspend the services for which the aforesaid charges are payable for the said Property; and
- (b) recover any unpaid amount including the cost of recovery together with interest thereon and for the legal fees incurred by the Vendor or the Manager incidental to the collection of the aforesaid charges.

1.3 Notwithstanding the Rules and Regulations contained herein, the Purchaser shall also comply with any other rules and regulations that are applicable to the PRIMA Development as determined by PRIMA from time to time.

2. **THE SAID PROPERTY**

2.1 **PERMITTED USE**

The Purchaser shall:-

- (a) use the said Property exclusively for residential purposes only;
- (b) ensure that the said Property shall be owner occupied at all times and not part with possession of the said Property or any part thereof. For the avoidance of doubt, the Purchaser shall not have the right to lease or let the said Property or any part thereof

to any third parties during the Moratorium Period (as defined in **Clause 31(1)** of this Agreement);

- (c) not use the said Property or any part of the PRIMA Development for any illegal, unlawful, immoral or hazardous purposes or any other purpose deemed to be undesirable by the Vendor or the Manager or bring thereon nuisance of whatever nature or give reasonable cause for complaint by the Manager, the other purchasers or any lawful occupiers.

2.2 NUISANCE AND RESIDENTIAL RESTRICTIONS

The Purchaser shall:-

- (a) be responsible for the conduct of his family, servants, agents and invitees at all times, ensuring that their behaviour is neither offensive to other occupants of the PRIMA Development and adheres to the rules and regulations set out in these Rules and Regulations at all times;
- (b) not do nor allow to remain upon the said Property anything which may be or become or cause a nuisance, annoyance, disturbance, inconvenience, obstruction, injury or damage to the Vendor or the other purchasers, owners or occupiers of adjacent or neighbouring lot(s);
- (c) not himself or permit any person whom the Purchaser has control over to play at land, roads or pavements abutting the said Property in the PRIMA Development;
- (d) not cause any accumulation of dirt, rubbish, debris or garbage or store or bring upon the said Property or any part of the PRIMA Development any articles of specially combustible, inflammable, explosive or dangerous nature;
- (e) not bring, accumulate, keep, store, stack or lay out upon the said Property any materials, equipment, plant, bins, crates, cartons, boxes or any receptacle for waste or any other item which is or might become untidy, unclean, unsightly or in any way detrimental to the said Property or the PRIMA Development;
- (f) not use the said Property for a sale by auction, for soliciting of goods and services, or religious or political activities or for any dangerous noxious noisy or offensive trade business manufacture or occupation or for any illegal or immoral act or purpose or for any purpose that would be injurious to the reputation of the PRIMA Development;
- (g) not permit any waste, rubbish, material or article or object of whatever nature to be thrown out of the windows of the said Property;
- (h) not to cause any obstruction in or on the approaches adjacent to or leading to the said Property and other buildings within the PRIMA Development by leaving or parking or permitting to be left or parked any vehicle belonging to or used by the Purchaser, his family, servants, agents or invitees;

- (i) not cause any land, roads or pavements abutting the said Property to be untidy or in a dirty condition and in particular (but without prejudice to the generality of the above) not to deposit on them refuse or other materials;
- (j) not leave unattended or store any goods, furniture, boxes, objects or vehicles at any part of the said Property so as to cause inconvenience or obstruction to the others;
- (k) not allow, do or keep in the said Property, things and/or objects which may overload or impair the floors, walls or roofs thereof;
- (l) not affix, inscribe or exhibit by any means on the exterior of the said Property or the windows or balconies thereof any show-board, placard, name-plate, signboard, advertisement or notice of any description;
- (m) not hold any open-air function within any part of the PR1MA Development without serving seven (7) days prior written notice to the Vendor or the Manager;
- (n) not create any noise or engage in any offensive conducts likely to interfere with or upset the peaceful and lawful enjoyment of the other purchasers or any lawful occupiers or of any person lawfully within the PR1MA Development;
- (o) not keep, store, use or detonate fireworks or any explosives or highly flammable material of any nature in any part of the PR1MA Development;
- (p) not keep any pets or animals, whether domesticated or not, save for in the said Property. For the avoidance of doubt, the Purchaser may keep common household pets in the said Property for non-commercial purposes and in the numbers which are not considered unreasonable by the Vendor. The pets or animal must be kept within an enclosure and on a leash by a person capable of controlling such animal(s); and
- (q) not tamper with or cause to be tampered with any fire fighting equipment within the PR1MA Development.

2.3 **STAFF AND EMPLOYEES OF THE VENDOR AND MANAGER**

The Purchaser hereby acknowledges and agrees that:-

- (a) the staff, employees or agents of the Vendor and the Manager are not obligated to carry out any personal or business errands of the Purchaser, his family, servants, agents, invitees or other lawful occupiers of the said Property including acceptance or delivery of any parcels or to provide services of whatsoever kind;
- (b) the Purchaser shall not without prior written consent of the Vendor or the Manager, request any staff, employees or agent of the Vendor or of the Manager to carry out any personal errands; and
- (c) if the Vendor or the Manager shall agree to grant its consent in writing, such consent shall be granted on the condition that:-

- (i) neither the Vendor or the Manager, as the case may be, nor its staff, employees or agent shall be held liable for any loss, damage, breakage or incorrect delivery of any item or service accepted for or on behalf of the Purchaser or the person who requested for the said services; and
- (ii) the Purchaser shall indemnify the Vendor or the Manager against all damages, losses, costs, expenses, actions, demands, proceedings, claims and liabilities made against or suffered by the Vendor or the Manager including cost of any legal proceeding on a solicitor and client basis arising from or by reason of the Vendor or the Manager granting such consent.

2.4 BUILDING BY-LAWS

The Purchaser shall:-

- (a) not commit any breach of any planning control and shall comply with the provisions and requirements of the Uniform Building By-Laws 1984 ("**Building By-Laws**") that affect the said Property whether as to the permitted user or otherwise;
- (b) at the Purchaser's expense, obtain all planning permissions and to serve all such notices as may be required for the carrying out of any operations or use on the said Property in respect of which planning permission is required under the Building By-Laws provided that no application for planning permission shall be made without the prior consent of the Vendor;
- (c) not commence any renovation, alteration, modification or variation on the said Property except with the prior approval from the Appropriate Authority and a copy of such approval shall be forwarded to the Vendor for their records;
- (d) subject only to any statutory direction to the contrary, pay and satisfy any charge or levy that may subsequently be imposed under the Building By-Laws in respect of the carrying out or maintenance of any such operations or the commencement of or continuance of any such use; and
- (e) notwithstanding any consent which may be granted by the Vendor under these Rules and Regulations, not carry out or make any alteration or addition to the said Property or any change of use until:-
 - (i) all necessary notices under the Building By-Laws have been served and copies produced to the Vendor; and
 - (ii) all necessary permissions under the Building By-Laws have been obtained and produced to the Vendor.

2.5 UPKEEP MAINTENANCE AND REPAIR OF THE SAID PROPERTY

- (a) From the date of delivery or deemed delivery of possession of the said Property to the Purchaser, the Purchaser shall at all times keep the said Property clean and hygienic and take all measures to prevent any infestation by any pests, termites or vermin.
- (b) From the date of delivery or deemed delivery of possession of the said Property to the Purchaser, the Purchaser shall at all times keep the said Property including all fixtures and additions thereto in good and substantial repair and condition.
- (c) The Purchaser shall obtain prior written consent from the Vendor and thereafter give notice to the other purchasers or occupiers of all lots adjoining and adjacent of his intention to repair or replace any joints or beams on which the floor or ceiling of the said Property are laid and shall make good any damage to the floor ceiling and walls of the lots affected thereby.
- (d) The Purchaser hereby agrees and declares that the walls separating the said Property from the adjoining lots shall be deemed and acknowledged to be a party wall or walls as the case may be and the same shall be maintained and kept in good repair from time to time at the joint cost and expense of the Purchaser and the owners of such adjoining lot(s).
- (e) The Purchaser shall give the Vendor prompt notice of any damage to or defect in the water pipes, sewers, electrical installations or fixtures which comes to the Purchaser's knowledge and which shall become apparent within the Defect Liability Period only as stipulated in **Clause 26** of this Agreement.
- (f) The Purchaser hereby expressly undertakes that in the event of the Purchaser carrying out any repair work to the said Property and the same is with the written consent of the Vendor, the Purchaser shall at his own cost and expense ensure that the Purchaser's contractor or any person or company so engaged or entrusted by the Purchaser as regards to such repair work will not in any manner:-
 - (i) damage or cause any damage to the road, drainage, sewerage, piping, cable or any other structures or items put up by the Vendor or otherwise within the PR1MA Development;
 - (ii) store or keep any building materials and/or construction equipment within the PR1MA Development save and except within the said Property or any area specifically agreed by the Vendor in writing;
 - (iii) erect any workers' quarters or store on the PR1MA Development;
 - (iv) block any road, driveway, back lane, passage way or path within the PR1MA Development;
 - (v) dump any waste or redundant materials within the PR1MA Development; and

- (vi) cause any inconvenience and/or annoyance to any other purchasers or any lawful occupiers,

AND in the event that such repair work shall involve any alteration or extension work, then the Purchaser hereby agrees that **Clause 2.5 (c)** in this Schedule shall apply mutatis mutandis.

2.6 RENOVATION WORKS

- (a) Unless the prior written consent of the Vendor has been obtained, the Purchaser shall **NOT**:
 - (i) combine, join or unite the said Property with any adjoining lot(s); and
 - (ii) carry out any renovation, alteration or extension work to the said Property which may involve the removal, modification, pulling down and/or alteration of any wall within the said Property without prior approval of the Appropriate Authority; andAll works referred to in this **sub-clause (a)** shall hereinafter collectively referred to as the "**Renovation Works**".
- (b) Prior to commencement of any Renovation Works, the Purchaser shall:
 - (i) have submitted to the Vendor or the Manager not later than thirty (30) days from the proposed commencement date of the Renovation Works, copies of the requisite approval obtained by the Purchaser from the Appropriate Authority for the proposed Renovation Works together with detailed plans, specifications, description of the proposed Renovation Works and such other documents as the Vendor or the Manager may require from time to time; and
 - (ii) have received written consent from the Vendor.
- (c) The Purchaser hereby expressly undertakes that in the event of the Purchaser deciding to carry out any renovation, alteration or extension work to the said Property after the issuance of the certificate of completion and compliance and the same is with the written consent of the Vendor, the Purchaser shall at his own cost and expense ensure that the Purchaser's contractor or any person or company so engaged or entrusted by the Purchaser as regards such renovation, alteration or extension work will not in any manner:-
 - (i) damage or cause any damage to the road, drainage, sewerage, piping, cable or any other structures or items put up by the Vendor or the Manager or otherwise within the PR1MA Development;
 - (ii) store or keep any building materials and/or construction equipment within the PR1MA Development save and except within the said Property or any area specifically agreed by the Vendor or the Manager;

- (iii) erect any workers' quarters or store on the PR1MA Development;
 - (iv) block any road, driveway, back lane, passage way or path within the PR1MA Development;
 - (v) dump any waste or redundant materials within the PR1MA Development; and
 - (vi) cause any inconvenience and/or annoyance to any other purchasers or any lawful occupiers within the PR1MA Development.
- (d) The Purchaser shall be liable for any damage to any part of other lot(s) adjoining and adjacent to the said Property caused as a result of or arising from the Renovation Works to the said Property and shall be liable for all costs and expenses incurred by the Vendor to repair replace or restore such damage.
- (e) The Purchaser shall ensure that the Purchaser's contractor or any person or company so engaged or entrusted by the Purchaser as regards to the Renovation Works observe, comply with and adhere to the Rules and Regulations and any regulations or rules prescribed by the Vendor. The Purchaser shall be responsible for and keep the Vendor, the Manager, its officers, servants and agents fully indemnified against all damages, losses, costs, expenses, actions demands proceedings claims and liabilities made against or suffered or incurred by the Vendor including the costs of defending any legal suits or proceedings taken against the Vendor (on a solicitor and client basis) arising from the Renovation Works.

2.7 AERIALS SIGNS AND ADVERTISEMENTS

The Purchaser shall:-

- (a) not affix to or exhibit on the outside of the said Property or to or through any window of the said Property nor display anywhere outside the said Property any placard sign notice fascia board or advertisement except for any sign permitted by virtue of any consent given by the Vendor or the Manager pursuant to a covenant contained in this Schedule; and
- (b) not erect upon or affix the said Property any part thereof any machinery or mechanical, scientific or electrical apparatus save and except for radio and televisions receiving sets, indoor aerials and the usual domestic electrical apparatus properly fitted with approved suppressers against electrical interference to the other purchasers or any lawful occupiers.

2.8 STATUTORY OBLIGATIONS

- (a) The Purchaser shall, at his own expense, execute all works and provide and maintain all arrangements upon or in respect of the said Property which are required under any Act of Parliament, ordinance, enactment, statute, order, rule, regulation or by-laws of any government department, local authority, other public or competent authority or

court of competent jurisdiction regardless of whether such requirements are imposed on the Purchaser or such other lawful occupiers of the said Property claiming under the Purchaser.

- (b) The Purchaser shall not do in or near the said Property any act or thing by reason of which the Vendor may under any Act of Parliament, ordinance, enactment, statute, order, rule, regulation or by-laws of any government department, local authority, other public or competent authority or court of competent jurisdiction, incur or be imposed upon it or become liable to pay any penalty, damages, compensation, costs, charges or expenses.
- (c) Without prejudice to the generality of the above, the Purchaser shall comply in all respect with the provisions of any Act of Parliament, ordinance, enactment, statute, order, rule, regulation or by-laws of any government department, local authority, other public or competent authority or court of competent jurisdiction and any other obligations imposed by law or by any by laws applicable to the use of the said Property.

2.9 REFUSE DISPOSAL

The Purchaser shall:-

- (a) dispose of all debris, waste, disposable items, garbage, rubbish and refuse through the trash containers and to ensure that it be properly secured in non porous polythene bags before being placed in trash containers or such other appropriate places as the Vendor or the Manager shall designate from time to time. Any spillage from his/her refuse shall be promptly removed and cleaned up by the Purchaser;
- (b) not place or dispose of combustible, inflammable, explosive or dangerous nature substances including but not limited to paint and petroleum products, whether in the form of liquid or gas, in or through the trash containers;
- (c) not to place or dispose of any wet cement or any other adhesive materials into the refuse bins or in or through the trash containers;
- (d) ensure that all recyclable material or waste is separated and prepared in accordance with the applicable recycling guidelines; and
- (e) carry all heavy or bulky, glass or breakable objects into the refuse bins or in or through the trash containers to the central refuse area save where the same is specifically designated for such purposes.

2.10 RENOVATION, DELIVERY, REMOVAL AND REPAIR

(a) WORKS SCHEDULE

If required by the Vendor or the Manager, the Purchaser shall inform the Vendor or the Manager of the schedules of work of his contractors. The Purchaser must notify the Vendor or the Manager of any changes to the schedule, which have been notified to the Vendor or the Manager.

(b) SECURITY CHECK

If required by the Vendor or the Manager, all delivery, removal and renovation works must be reported at the security check-point prior to the work being carried out. Otherwise, the Vendor or the Manager reserves the right to refuse entry to any unknown personnel for whatever purposes which cannot be verified there and then.

(c) IDENTIFICATION PASSES

All contractors must report at the security check-point to obtain identification passes and must wear their passes at all times whilst in the PR1MA Development and the said Property. Security personnel have the right to question or request any person within the PR1MA Development found without a pass to leave.

(d) PACKING AND CRATING MATERIALS

Packing and crating materials must be removed by the Purchaser and the contractors to the dumping ground approved by the authority.

(e) CONDUCT AND BEHAVIOUR OF CONTRACTORS

The Purchaser shall be responsible for the conduct and behaviour of their appointed contractors. Any damages to the said Property and/or any part of the PR1MA Development caused by the moving of furniture or other personal effects shall be replaced or repaired at the expense of the Purchaser.

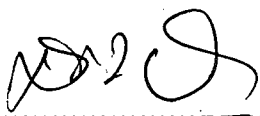
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IN WITNESS WHEREOF the parties have set their hands the day and the year first above written.

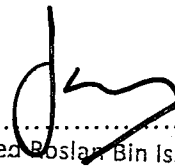
Vendor

SIGNED by for and on behalf of
PERBADANAN PRIMA MALAYSIA
by its Attorney

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Name: Mohd Nizam Bin Ordian
Assistant Vice President, Product Marketing
700415-08-6297



.....
Name: Mohamed Roslan Bin Ismail
Chief Marketing Officer
610710-05-5849

Purchaser

SIGNED by the abovenamed
PURCHASER
in the presence of:

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SITI HAJAR BINTI AHMAD
Peguambela & Peguamcara
Advocate & Solicitor
Kangar
(No. K/P: 671008-02-5040)
BC/S/515

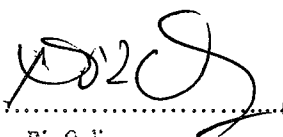


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)Name: ROSLINA BINTI RASDI
)NRIC No.: 910131-02-5922

***Proprietor**

SIGNED by for and on behalf of
PRIMA CORPORATION MALAYSIA
as Attorney for **DIBUK DEVELOPMENT**
& **REALTY SDN BHD**
(COMPANY NO: 786338-W)

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Name: Mohd Nizam Bin Ordian
Assistant Vice President, Product Marketing
700415-08-6297



.....
Name: Mohamed Roslan Bin Ismail
Chief Marketing Officer
610710-05-5849

*Delete if inapplicable

